

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 22-33

CCMA, LLC

VS.

MEDITERRANEAN SHIPPING COMPANY S.A. and
MSC MEDITERRANEAN SHIPPING COMPANY (USA)
INC. As agent for Mediterranean Shipping Company S.A.

JOINT STATUS REPORT

Pursuant to the Administrative Law Judge’s Initial Order dated December 7, 2022 (FMC Dkt. # 4) and the subsequent Order Granting Motion on Extension of Time dated January 3, 2023 (FMC Dkt. # 7), Complainant CCMA, LLC (“CCMA” or “Complainant”) and Respondents MEDITERRANEAN SHIPPING COMPANY S.A. and MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC. as agent for Mediterranean Shipping Company S.A. (“MSC” or “Respondents”) (jointly the “Parties”) hereby submit their joint status report.

Consumer Affairs and Dispute Resolution Services

The parties have contacted the Commission’s Office of Consumer Affairs and Dispute Resolution Services (CADRS) and are weighing whether mediation with CADRS would be helpful in resolving this dispute and at what point in time.

Initial Disclosures

In order to complete the collection of the required information, Complainant and Respondent have agreed to exchange initial disclosures on January 27, 2023.

Proposed Scheduling Order

The Parties propose the following Scheduling Order:

- February 15, 2023 - Initial Discovery Requests Due
- March 17, 2023 - Responses to Initial Discovery Due
- March 24, 2023 - Depositions Begin
- May 5, 2023 - Deadline for Submission of Discovery Requests
- May 9, 2023 - Joint Status Report
- May 30, 2023 - Parties Complete Depositions
- June 5, 2023 - Close of Discovery
- July 11, 2023 - Complainant's Brief, Proposed Findings of Fact, and Appendix
- August 11, 2023 - Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact and Appendix
- August 25, 2023 - Complainant's Reply Brief and Responses to Proposed Findings of Fact

Respectfully submitted,

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/s/ John H. Kester, Esq. _____
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Attorneys for Respondent

Dated: January 25, 2023

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 25th day of January 2023, the foregoing Joint Status Report was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

/s/David K. Monroe